

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

**Interconnection of Large Loads to the)
Interstate Transmission System)**

Docket No. RM26-4-000

**REPLY COMMENTS OF
LEAN ENERGY US**

Pursuant to the above-captioned Advance Notice of Proposed Rulemaking (ANOPR) initiated by the Federal Energy Regulatory Commission (“FERC” or the “Commission”), LEAN Energy US hereby submits these reply comments.

The ANOPR is in response to the directive issued on October 23, 2025 by the Secretary of the Department of Energy (DOE) for the Commission to assert jurisdiction over large load interconnection to “ensure efficient, timely, and non-discriminatory load interconnections.”¹

I. NOTICE AND COMMUNICATIONS

All communications, correspondence, and documents related to this proceeding should be directed to the following persons and such persons should be placed on the official service list maintained by the Commission’s Secretary for this proceeding:

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¹ Letter from Secretary of Energy, Honorable Chris Wright to David Rosner, Chairman, FERC, October 23, 2025.

II. SUMMARY OF LEAN ENERGY US

The Local Energy Aggregation Network (LEAN) Energy US is the national nonprofit organization representing nearly 20 million residential, commercial, and industrial electricity customers served by Community Choice Aggregation (CCA) programs in California, Illinois, Massachusetts, New Hampshire, New Jersey, New York, Ohio, and Rhode Island. In states that have restructured energy markets and enabled CCA under state law, these community-driven models empower local governments to purchase and develop power on behalf of their customers. While these programs are diverse in form and structure, they play a critical role in allowing thousands of local governments to take control of their energy procurement while collaborating with utilities. CCAs protect consumers, drive innovation, provide competitive choices to customers, create jobs, and stimulate economic development nationwide.

Many CCAs are prepared to serve data centers with reliable, and affordable energy or partner with them to provide additional energy solutions. LEAN Energy US has an interest in FERC's proceeding because it has the potential to establish rules and/or tariffs that determine how large loads are incentivized to structure their configurations, how they behave during the interconnection process, as well as how they interact with the grid long-term. A beneficial approach that carefully considers the appropriate role of federal standards could result in data centers reducing system costs, adding flexibility and capacity, and enhancing the overall grid, while missing the full scope of this opportunity could result in additional grid strain, increasing costs, and reliability impacts. CCAs stand ready to participate as partners and solutions providers, with our primary interest in maintaining our member communities' local autonomy and low costs.

III. REPLY COMMENTS

a. FERC Should Carefully Consider its Jurisdiction Over Load Interconnection to Provide Clarity for Active State Regulatory Actions

As noted by many commenters,² there is already significant progress being made at the state level to ensure data centers come online in a timely manner while “providing critical checks for resource adequacy, reliability, and affordability.”³ Many CCAs across the U.S. are engaged in those state processes and agree with these commenters that FERC should be careful not to usurp traditional roles in this proceeding. For example, forecasting occurs at the state and local levels, so federal standards, if any are established, need to consider how to best and most accurately inform state/local forecasting processes. Like utilities, CCAs’ ability to timely procure cost-effective resources for their customers is underpinned by reliable and accurate forecasting.

LEAN Energy US agrees that FERC should avoid simply asserting jurisdiction over large load interconnection in ways that could upend these traditional roles and relationships. In fact, many commenters point out that significant benefits from FERC’s intervention here—such as improving the timeliness and accuracy of load forecasting and predictable interconnection processes—can be accomplished without the Commission asserting jurisdiction over load interconnection.⁴ LEAN Energy US agrees and encourages an approach that focuses on the

² See, e.g., *Interconnection of Large Loads to the Interstate Transmission System*, Initial Comments of MISO Transmission Owners, Docket N. RM26-4-000 at 4 (Nov. 21, 2025) (“MISO Transmission Owners Comments”).

³ *Interconnection of Large Loads to the Interstate Transmission System*, Initial comments of The Organization of MISO States, Docket No. RM26-4-000 at 9 (Nov. 21, 2025) (“OMS Initial Comments”). See also, e.g., Initial Comments of the Ohio Consumers’ Counsel, Docket No. RM26-4-000 at 4 (Nov. 21, 2025) (“OCC Comments”); Initial Comments of the California Public Utility Commission, Docket No. RM26-4-000 at 2 (Nov. 21, 2025) (“CPUC Comments”).

⁴ See, e.g., *Interconnection of Large Loads to the Interstate Transmission System*, Initial comments of Advanced Energy United, Docket No. RM26-4-000 at 6 (Nov. 21, 2025) (“Advanced Energy United Comments”).

Principles that Secretary Wright laid out with a focus on adopting best practices that could be modified by states and market regions.

b. CCAs Can Provide Data Centers with Energy and Capacity Including Flexibility Outside the Fence-line of Their Facilities

The potential for data centers to operate flexibly is a focus of both the ANOPR and commenters. While data centers are improving their ability to adjust operations due to grid conditions, Microsoft points out that they currently have limited curtailment capability and notes that incentives will drive innovation.⁵ Data centers that co-locate storage or generating assets and have the ability to shift load in response to market or grid operating condition signals may be well-positioned to work with their local CCA to integrate their hybrid resources into a flexible load program that can benefit not only the data center as a customer, but all customers served by the CCA, by reducing peak demand through automated load reduction. Further, commenters including EmeraldAI, Tesla, Rewiring America, and Voltus point out that flexibility need not be inherent to the facility itself.⁶ With their localized profiles, CCAs are well-positioned to serve the needs of data centers with a portfolio of reliable and affordable power options, including existing load flexibility programs that can scale and leverage local customer assets to meet peak demand. However, these flexibilities can and should be incentivized in ways other than faster interconnection. Flexibility can be considered a competitive product, and should be available

⁵ *Interconnection of Large Loads to the Interstate Transmission System*, Initial Comments of Microsoft Corporation, Docket No. RM26-4-000 at 10 (Nov. 21, 2025) (“Microsoft Comments”).

⁶ See, e.g., *Interconnection of Large Loads to the Interstate Transmission System*, Initial Comments of EmeraldAI, Docket No. RM26-4-000 at 3 (Nov. 21, 2025) (“Emerald AI Comments”); *Interconnection of Large Loads to the Interstate Transmission System*, Initial Comments of Tesla, Docket No. RM26-4-000 at 3 (Nov. 21, 2025) (“Tesla Comments”); *Interconnection of Large Loads to the Interstate Transmission System*, Initial Comments of Rewiring America, Docket No. RM26-4-000 at 1 (Nov. 21, 2025) (“Rewiring America Comments”); *Interconnection of Large Loads to the Interstate Transmission System*, Initial Comments of the Distributed Capacity Parties, Docket No. RM26-4-000 at 3 (Nov. 21, 2025) (“DCP Comments”).

beyond defaulting to utility-run programs. For example, flexibility could be bolstered by states wishing to encourage more localized capacity development or enforce clean energy standards. In general, fast tracking data center interconnections at the expense of connecting new resources to the grid could lead to reliability issues that outstrip the benefits flexibility can provide.

c. FERC Should Consider the Full Suite of Actions that Could Shift Costs to Existing Consumers

Many commenters noted the importance of protecting existing customers from cost-shifting.⁷ LEAN Energy US shares these concerns, as CCAs exist to provide consumers with competitive options that fit their energy needs and preferences. As such, we have an interest in ensuring that markets are fairly designed to avoid passing the costs of one class of customer to another. In particular, we wish to emphasize the comments of the Ohio Consumers' Counsel in noting that the reliability studies required by Principle #10 are insufficient to protect consumers from the *financial* impacts of existing generators retiring from the market to instead serve more lucrative large load customers.⁸ FERC should consider alternative mechanisms to ensure it retains visibility over the full spectrum of actions that have the effect of raising consumer costs and ensure it adopts policies to mitigate such actions.

Respectfully submitted,

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Claire Depit-Stromback
LEAN Energy US

⁷ See, e.g., *Interconnection of Large Loads to the Interstate Transmission System*, Initial Comments of the American Public Power Association, Docket No. RM26-4-000 at 6 (Nov. 21, 2025) ("APPA Comments"); *Interconnection of Large Loads to the Interstate Transmission System*, Initial Comments of the National Rural Electric Cooperative Association, Docket No. RM26-4-000 at 18 (Nov. 21, 2025) ("NRECA Comments"); *Interconnection of Large Loads to the Interstate Transmission System*, Initial Comments of the New York Utility Intervention Unit, Docket No. RM26-4-000 at 10 (Nov. 21, 2025) ("UIU Comments"); etc.

⁸ OCC Comments at 10.